

difficult or novel issues contemplated by rule 3.400(b)(1).

2. The Remaining Rule 3.400(b) Factors Are Not Implicated

Because Defendant does not contend that any of the remaining Rule 3.400(b) factors apply, the Court addresses Factors 2 through 5 together. There is no indication that the case will involve management of an unusually large number of witnesses or a substantial volume of documents beyond what is typical in a tort or property-damage case. (Rule 3.400(b)(2).) There are only two parties to the litigation, and even if the pending motion to amend results in an additional defendant, the case will still involve only two sides represented by two law firms. (Rule 3.400(b)(3).) Defendant does not identify any related actions whose coordination would be required, and none appear to exist. (Rule 3.400(b)(4).) Finally, while Plaintiff seeks injunctive relief, nothing suggests that post-judgment enforcement would require ongoing judicial supervision of the type contemplated by Rule 3.400(b)(5).

3. Defendant's Late-Filed Reply Does Not Change The Result

Under CCP section 1005(b), Defendant's reply was due five court days before the December 4 hearing, that is, by November 25, 2025. Defendant did not file the reply (or the accompanying errata attaching previously omitted exhibits) until December 1, 2025. Although the Court could decline to consider the untimely filing, it has reviewed the submission here and concludes that it does not alter the analysis.

The reply does not identify any new issues bearing on complex designation. It identifies no additional pretrial motions raising difficult or novel legal issues, no expanded witness or document load, no additional parties, and no need for coordination with related actions. Nor does it show that post-judgment supervision would be anything other than ordinary enforcement of injunctive or monetary relief. The reply reiterates arguments regarding storm damage, debris, agency communications, and alleged dumping by a predecessor owner. Defendant asserts as a new matter that Plaintiff has been "unwilling" to participate in agency-encouraged remediation efforts. However, a party's alleged lack of cooperation in informal remediation discussions is not a basis for complex designation and does not suggest that this case requires exceptional judicial management.

Conclusion

Based on the Rule 3.400 factors and the totality of the circumstances, the Court concludes that this action does not require complex-case treatment. The motion is therefore denied.

7. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
HEARING IN RE: MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES & REQUESTS FOR PRODUCTION & WAIVE OBJECTIONS
FILED BY:
TENTATIVE RULING:

Defendant Guatam Patil moves to compel responses to Special Interrogatories (Set One) and Requests

for Production (Set One) and to waive objections.

Defendant served Special Interrogatories (Set One) on June 5, 2025. Based on mail service, responses were due July 10, 2025. Defendant agreed, via email to extend the deadline July 19. On July 18, plaintiff sent responses by electronic service. Defendant argues that the email response, given no express agreement to accept electronic service, was the equivalent of no response. Therefore, he had no duty to meet and confer about the responses, and is entitled to responses without objection. Defendant filed this motion on July 30. Defendant's exhibit C shows that the parties communicated by email concerning the discovery. In sending the responses, Plaintiff states that they are sent "[p]ursuant to our agreement to accept service via email[.]"

An unrepresented party may consent to electronic service, by serving notice on all parties and filing the notice with the court (CCP § 1010.6(c)(2).) Plaintiff filed a consent to electronic service on June 27, 2025. Defendant filed a consent to electronic service with the court on June 4, 2025. Although the court file does not apparently contain a proof of service of the consent, service is for the benefit of the other party, and defendant cannot rely on his own failure to serve the filed document.

The motion is **denied**.

8. 9:00 AM CASE NUMBER: C24-03170
CASE NAME: MARIE DUFFY VS. FCA US, LLC.
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: FCA US, LLC.
TENTATIVE RULING:

Before the Court is a demurrer by FCA US, LLC to Plaintiffs' first amended complaint. For the reasons set forth, the Court rules as follows: (a) demurrers to the first through fourth causes of action and sixth cause of action – **sustained, with leave to amend**; and (b) demurrer to fifth cause of action - **overruled**.

Background

This action involves claims for defects in a 2022 Dodge Charge vehicle manufactured by defendant FCA US LLC. (First Am. Compl. ("FAC") ¶¶ 9, 12, 14.) Plaintiffs allege that on or about June 29, 2022, they "entered into" a written warranty with FCA covering the vehicle. (FAC ¶ 9.) Plaintiffs allege the defendant's vehicle has a 6.4L engine which is defective. (FAC ¶¶ 12, 14.) They allege the vehicle had other defects as well, that they presented the vehicle multiple times to FCA's authorized repair facilities, that the repair facilities twice kept the vehicle for over a month, but that the repair facilities have been unable to fix the engine defects. (FAC ¶¶ 14- 16.)

The operative FAC includes six causes of action. The first four causes of action allege violations of the Song-Beverly Consumer Warranty Act, Civil Code section 1790 *et seq.* ("Song-Beverly Act"), including breach of the express warranty and breach of the implied warranty of merchantability. The fifth cause of action alleges violation of the Magnuson-Moss Warranty Act, 15 U.S.C. section 2301 *et seq.* ("MM Act"), and the sixth cause of action alleges a claim for fraudulent inducement and/or fraudulent concealment. FCA has demurred to each of the six causes of action.